

IN THE COURT OF COUNTY
(COURT AND COUNTY NAMED IN THE CAPTION - THE COURT IN WHICH THE CHARGED
OFFENSE IS PENDING, AND ITS COUNTY (STATE, SUPERIOR, MAGISTRATE, PROBATE OR
MUNICIPAL; YOUR OWN CASE PAPERS NAME BOTH, AND THE INSTRUCTIONS PAGE SAYS
WHO CAN CONFIRM THEM))
STATE OF GEORGIA

STATE OF GEORGIA,

v. CASE NO.:

MARIA-ALEJANDRA O'SHAUGHNESSY-WHITFIELD, OTN: (if known)
Defendant. JUDGE: (assigned by the court)

PETITION TO RESTRICT ACCESS TO CRIMINAL HISTORY RECORD INFORMATION (DEAD
DOCKET)
(O.C.G.A. Sec. 35-3-37(j)(3))

The defendant, Maria-Alejandra O'Shaughnessy-Whitfield, files this petition in the above-styled criminal
case, in the existing case under the existing case number, under O.C.G.A. Sec. 35-3-37(j)(3). The
defendant states:

1. The charged offense in the above-styled case has been placed on the dead docket and has remained on
the dead docket for more than 12 months, as of the filing of this petition.
2. No active warrant is pending for the defendant in any jurisdiction. An active warrant is an absolute bar
to this relief: the court shall not grant the petition if one is pending.
3. The Court gives due consideration to the reason the offense was placed on the dead docket, which the
defendant states below as far as the defendant knows it.

CASE FACTS THE DEFENDANT SUPPLIES (fill each blank from the court record, never from
memory; the instructions page lists where each record lives):

Date the charge was placed on the dead docket:

.....

Exact O.C.G.A. Code section of the charge:

.....

Date of arrest in this case:

.....

The reason the case was placed on the dead docket, as far as you know it:

.....

Your own statement of how this pending charge on your record has been a barrier (state only what you know first-hand; nothing on these lines is written for you):

.....
.....
.....

READ EACH NUMBERED STATEMENT BEFORE SIGNING. Each is pleaded as your own statement. If any numbered statement is not true of your case, do not file this petition; the instructions page tells you where to get help instead.

WHEREFORE, the defendant asks the Court to enter an order directing the Georgia Crime Information Center (GCIC) and every agency in the county named in the caption, including the arresting agency and the jail or detention center, to restrict all criminal history record information pertaining to the charged offense, pursuant to O.C.G.A. Sec. 35-3-37(j)(3), with disclosure limited to what O.C.G.A. Sec. 35-3-37(t) and (v) permit; and, in the alternative, that the petition be set for hearing within 90 days of filing.

DATE SIGNATURE OF DEFENDANT

(The defendant signs and dates this petition personally. Nothing on this page is signed or dated for the defendant. No verification and no notary block is required by statute, and none is added.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield

MAILING ADDRESS: 1188 Upper Notch Crossing Road, Apartment 14B, Savannah, Georgia
31401-2214

TELEPHONE: (912) 555-0199 ext. 4417

EMAIL: maria.alejandra.oshaughnessy.whitfield@longmailexample.org

Defendant, Pro Se (where unrepresented)

Route: obligation:track-only:GA:ga-deaddocket-j3

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STATE OF GEORGIA,

v. CASE NO.:

MARIA-ALEJANDRA O'SHAUGHNESSY-WHITFIELD, OTN: (if known)
Defendant. JUDGE: (assigned by the court)

PROPOSED ORDER RESTRICTING ACCESS TO CRIMINAL HISTORY RECORD INFORMATION
(O.C.G.A. Sec. 35-3-37(j)(3))

(This page is proposed by the defendant for the Court's consideration, as the controlling practice directs a
proposed order always accompany the filing. Every order line below is completed, signed and dated only
by the Court.)

Before the Court is the defendant's Petition to Restrict Access to Criminal History Record Information
(Dead Docket) under O.C.G.A. Sec. 35-3-37(j)(3).

The Court has given due consideration to the reason the charged offense was placed on the dead docket,
and finds that no active warrant is pending for the defendant.

IT IS ORDERED that the Georgia Crime Information Center (GCIC) and every agency in the county
named in the caption, including the arresting agency and the jail or detention center, restrict all criminal
history record information pertaining to the charged offense, identified by the OTN and the date of arrest
stated below, pursuant to O.C.G.A. Sec. 35-3-37(j)(3).

Disclosure of the restricted information remains limited to what O.C.G.A. Sec. 35-3-37(t) and (v) permit.

OTN of the case (needed for this order to be actionable by GCIC):

.....

Date of arrest identified in this order:

.....

SO ORDERED, this day of, 20.....

.....

JUDGE, COURT NAMED IN THE CAPTION

(The judge's signature block is a third-party block. It is never prefilled, and the court dates its own order.)

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STATE OF GEORGIA,

v. CASE NO.:

MARIA-ALEJANDRA O'SHAUGHNESSY-WHITFIELD, OTN: (if known)
Defendant.

CERTIFICATE OF SERVICE

I, Maria-Alejandra O'Shaughnessy-Whitfield, certify that on the date stated below I served a copy of the
Petition to Restrict Access to Criminal History Record Information (Dead Docket) and the accompanying
proposed order on each person listed below, by certified mail, e-filing or hand delivery.

NAME AND MAILING ADDRESS OF THE PROSECUTING ATTORNEY SERVED, IDENTIFIED AS
DISTRICT ATTORNEY OR SOLICITOR-GENERAL FOR THE COUNTY (you write it here before
service; the clerk's office can provide it):

.....
.....

OFFICE OF THE CLERK OF COURT SERVED (the clerk of the court named in the caption; the clerk's
office can confirm its service address):

.....
.....

Method used to serve each recipient (chosen from those listed above, as the clerk directs):

.....

DATE OF SERVICE

SIGNATURE OF DEFENDANT

This page is not proof of service and does not say that anything has been served. It is completed and
signed when the copies actually go out. A date or a signature written before the copies go out would be
false.

Route: obligation:track-only:GA:ga-deaddocket-j3

EXHIBIT A - DOCKET SHOWING THE DEAD DOCKET ENTRY AND ITS DATE

For: Maria-Alejandra O'Shaughnessy-Whitfield

Filing: the Petition to Restrict Access to Criminal History Record Information (Dead Docket) in this packet.

ATTACH BEHIND THIS PAGE: a copy of the dead docket entry, or of the case docket showing the date the charge was placed on the dead docket.

WHERE YOU GET IT: the clerk of the court in which the charge is pending.

HOW: Ask the clerk of the court where the charge is pending for the docket showing when the charge was placed on the dead docket, and attach it behind this page. The date on it is what starts the 12 months.

The platform never collects, inspects or authenticates this record. You obtain it, you check your answers against it, and you correct the packet where they disagree.

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